

1 ENGROSSED HOUSE
2 BILL NO. 3430

By: Wilk, Manger, Humphrey, and
Pfeiffer of the House

3 and

4 Hamilton of the Senate

5
6
7 [court costs - fines, costs, and fees in criminal
8 cases - defendants unable to pay debts - cost
9 judgments - court cost compliance program - default
10 procedures - referral - court clerks - court cost
11 compliance liaisons - Warning/Notice to Appear -
12 funds - court financial obligations in criminal
13 cases - judgments - stays of enforcement -
14 effective date]
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16

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 22 O.S. 2021, Section 983, as last
19 amended by Section 2, Chapter 211, O.S.L. 2024 (22 O.S. Supp. 2025,
20 Section 983), is amended to read as follows:

21 Section 983. A. As used in this section, unless the context
22 otherwise requires:

23 1. "Cost arrest warrant" means a warrant authorizing arrest
24 that is issued by a court under the following circumstances:

- a. failure to comply with the terms of a court financial obligations payment plan,
- b. failure to appear at a cost hearing or willfulness hearing, or
- c. failure to appear at the office of the court clerk of the county in which the court financial obligation is owed within ten (10) business days of being cited by a law enforcement officer to appear;

2. "Cost cite and release warrant" means a warrant issued by a court authorizing citation and release under the following circumstances:

- a. failure to comply with terms of a court financial obligations payment plan, or
- b. failure to appear at a cost hearing or willfulness hearing;

3. "Cost hearing" means a hearing in which the court determines the ability of a defendant to pay court financial obligations. Once a cost hearing date has been set, all court financial obligations shall be suspended until the cost hearing has been held;

4. "Court financial obligation" means all financial obligations including fines, costs, fees, and assessments, imposed by the court or required by law to be paid, excluding restitution or payments to be made other than to the court clerk;

1 5. "Payment-in-full" means a court financial payment term that
2 requires the defendant to pay the full amount of court financial
3 obligations owed within ninety (90) days of a plea or sentence in
4 the district court or within thirty (30) days of a plea or sentence
5 in the municipal court;

6 6. "Payment-in-installments" means payment terms for court
7 financial obligations that require the defendant to make monthly
8 payments in any amount until the amount owed is fully paid; and

9 7. "Willfulness hearing" means a hearing in which the court
10 determines whether a defendant who has previously been found to have
11 the ability to pay court financial obligations has willfully failed
12 to pay the debt.

13 B. 1. ~~Except in cases provided for in Section 983b of this~~
14 ~~title, when the judgment and sentence of a court, either in whole or~~
15 ~~in part, imposes court financial obligations upon a defendant, the~~
16 ~~court at the time of At sentencing may immediately, or at any point~~
17 ~~thereafter until the debt is either paid or waived, determine the~~
18 ~~ability of a defendant to pay the court financial obligations. The~~
19 for any criminal offense, the ~~court may make such determinations at~~
20 ~~a cost hearing or upon written motion or affidavit by the defendant.~~
21 ~~The ability of a defendant to pay court financial obligations may~~
22 ~~not impact the sentence imposed.~~

23 2. ~~Defendants with court financial obligations who are found by~~
24 shall impose any fines, court costs, fees, and assessments

1 authorized by law, subject to the provisions of paragraphs 3 and 4
2 of this subsection and subsection C of this section.

3 2. At the time of sentencing, the court ~~to be unable to pay, in~~
4 ~~whole or in part, shall be relieved of the debt by the court through~~
5 ~~a hardship waiver of the court financial obligations, either in~~
6 ~~whole or in part~~ offer to conduct, contemporaneously with
7 sentencing, an ability-to-pay hearing to determine the ability of
8 the defendant to satisfy such financial obligations.

9 3. In determining the ability of a defendant to pay, the court
10 shall consider the following factors:

- 11 a. individual and household income,
- 12 b. household living expenses,
- 13 c. number of dependents,
- 14 d. assets,
- 15 e. child support obligations,
- 16 f. physical or mental health conditions that diminish the
- 17 ability to generate income or manage resources,
- 18 g. additional case-related expenses to be paid by the
- 19 defendant, and
- 20 h. any other factors relevant to the ability of the
- 21 defendant to pay.

22 4. In determining the ability of a defendant to pay, the
23 following shall not be considered as income or assets:

- 24 a. child support income,

1 b. any monies received from a federal, state, or tribal
2 government need-based or disability assistance
3 program, or

4 c. assets exempt from bankruptcy.

5 5. Defendants in the following circumstances are presumed
6 unable to pay and eligible for relief under paragraph 2 of this
7 subsection:

8 a. designated as totally disabled by any federal, state,
9 or tribal disability services program including but
10 not limited to military disability, Social Security
11 Disability Insurance, Supplemental Security Income, or
12 tribal disability benefits,

13 b. receives support from ~~the~~ state, local, or federal
14 benefits based on indigency or receives need-based
15 public assistance such as Temporary Assistance for
16 Needy Families program, Supplemental Nutrition
17 Assistance Program, the Special Supplemental Nutrition
18 Program for Women, Infants, and Children nutrition
19 education and supplemental food program, or any other
20 federal need-based financial support,

21 c. receives subsidized housing support through the
22 Housing Choice Voucher program, the United States
23 Department of Housing and Urban Development, or other
24

1 state, local, or federal government housing subsidy
2 program, or

3 d. total income is below one hundred fifty percent (150%)
4 of the federal poverty level.

5 ~~C. 1. At the time of a plea or sentencing, the court shall~~
6 ~~inform the defendant of the total court financial obligations owed,~~
7 ~~the consequences of failing to pay 6. If the court financial~~
8 ~~obligations, and finds that any of the foregoing conditions are~~
9 ~~satisfied, the defendant may request a cost hearing if at any time~~
10 ~~he or she is shall be presumed unable to pay the court financial~~
11 ~~obligations, at which point the court may waive all or part of the~~
12 ~~debt owed and the fines, court costs, fees, and assessments, shall~~
13 ~~be waived in whole. If the total amount of court financial~~
14 ~~obligations owed is not available at the time of the plea or~~
15 ~~sentencing, the The court shall inform the defendant that court~~
16 ~~financial obligations have been incurred and the time and location~~
17 ~~where the defendant may learn of the total amount owed make written~~
18 ~~findings to support such waiver.~~

19 ~~2. 7.~~ The court shall order the defendant to appear immediately
20 after the sentencing and ability to pay at the office of the court
21 clerk to provide current contact information and ~~to either select~~
22 ~~payment terms or request a cost~~ in accordance to the ability to pay
23 ~~hearing. Failure to immediately report to the court clerk shall~~
24 ~~result in the full amount of court financial obligations to be due~~

1 ~~thirty (30) days from the date of the plea or sentencing in district~~
2 ~~courts or thirty (30) days from the date of the plea or sentencing~~
3 ~~in municipal courts.~~

4 ~~3. Payment of court financial obligations may be made under the~~
5 ~~following terms:~~

6 ~~a. payment in full, or~~

7 ~~b. payment in installments.~~

8 ~~Upon any change in circumstances affecting the ability of a~~
9 ~~defendant to pay, a defendant may request a cost hearing before the~~
10 ~~court by contacting the court clerk.~~

11 ~~4. The district court for each county and all municipal courts~~
12 ~~shall provide a cost hearing for any defendant upon request, either~~
13 ~~by establishing a dedicated docket or on an as-requested basis. A~~
14 ~~defendant who requests a cost hearing will receive a summons by~~
15 ~~personal service or by United States mail to appear in court as~~
16 ~~required by subsection C of this section. If a defendant fails to~~
17 ~~appear for a requested cost hearing, the court may issue either a~~
18 ~~cost cite and release warrant or a cost arrest warrant. No fees~~
19 ~~shall be assessed or collected from the defendant as a consequence~~
20 ~~of either requesting a cost hearing or the issuing of a cost cite~~
21 ~~and release warrant.~~

22 ~~D. In determining the ability of the defendant to pay court~~
23 ~~financial obligations, the court may rely on testimony, relevant~~
24 ~~documents, and any information provided by the defendant using a~~

1 ~~cost hearing affidavit promulgated by the Court of Criminal Appeals.~~
2 ~~In addition, the court may make inquiry of the defendant and~~
3 ~~consider any other evidence or testimony concerning the ability of~~
4 ~~the defendant to pay.~~

5 ~~E. 1. If at the initial cost hearing or any subsequent cost~~
6 ~~hearing, C. If neither paragraphs 3, 4, or 5 of subsection B of~~
7 ~~this section are satisfied and the court determines that the~~
8 ~~defendant is able has some ability to pay some or all of but not the~~
9 ~~ability to pay the full amount, the court ~~financial obligations,~~ the~~
10 ~~court may order any of the following conditions for payment:~~

- 11 ~~a. payment in full,~~
- 12 ~~b. payment in installments,~~
- 13 ~~c. financial incentive under a set of conditions~~
14 ~~determined by the court, or~~
- 15 ~~d. community service in lieu of payment; provided, the~~
16 ~~defendant shall receive credit for no less than two~~
17 ~~times the amount of the minimum wage specified~~
18 ~~pursuant to state law for each hour of community~~
19 ~~service.~~

20 ~~2. Any shall establish an installment plan consistent with the~~
21 ~~financial capacity of the defendant ~~who fails to comply with the~~~~
22 ~~terms of the payment plan ordered by the court shall be considered~~
23 ~~delinquent and the court may issue either a cost cite and release~~
24 ~~warrant or a cost arrest warrant and may reduce the amount owed or~~

1 impose payment in part or order community service in lieu of payment
2 or order the defendant to participate in another alternative
3 program.

4 ~~F. D.~~ If, at any later time, the court ~~determines that a waiver~~
5 ~~of any of the court~~ receives credible evidence that the financial
6 ~~obligations is warranted~~ circumstances of the defendant satisfies
7 one or more of the criteria in paragraphs 3, 4, or 5 of subsection B
8 of this section, or that the circumstances described in subsection C
9 of this section applies, or otherwise demonstrates an inability to
10 pay the full remaining balance, the court shall ~~apply the same~~
11 ~~percentage reduction equally to all~~ reopen the determination and may
12 reduce or waive the remaining fines, court costs, fees, and
13 assessments, excluding restitution accordingly. Nothing in this
14 section shall prohibit an individual from requesting a cost hearing
15 due to changed circumstances.

16 ~~G. E.~~ 1. A defendant is considered delinquent in the payment
17 of court financial obligations under the following circumstances:

18 a. when the total amount due has not been paid by the due
19 date, or

20 b. when no installment payments have been received ~~in the~~
21 ~~most recent ninety-day period~~ and:

22 (1) the ability to pay was determined pursuant to
23 subsection C of this section in the most recent
24 one-hundred-twenty-day period, or

1 (2) the ability to pay was not determined pursuant to
2 subsection B, C, or D of this section in the most
3 recent sixty-day period.

4 2. The court clerk shall periodically review cases for
5 delinquency at least once every ~~six (6)~~ three (3) months and, upon
6 identifying a delinquent defendant, notify the court which shall,
7 within ten (10) days thereafter, set a cost hearing for the court to
8 determine if the defendant is able to pay pursuant to the criteria
9 set forth in this section. The cost hearing shall be set within
10 ~~forty-five (45)~~ thirty (30) days of the issuance of the summons.
11 The hearing shall be set on a date that shall allow the court clerk
12 to issue a summons fourteen (14) days prior to the cost hearing.
13 Defendants shall incur no additional fees associated with the
14 issuance of the summons.

15 3. At least fourteen (14) days prior to the cost hearing, the
16 court clerk shall issue one summons to the defendant to be served by
17 United States mail to the mailing address of the defendant on file
18 in the case, substantially as follows:

19 SUMMONS

20 You are ORDERED to appear for a COST HEARING at a specified
21 time, place, and date to determine if you are financially able to
22 pay the fines, costs, fees, or assessments or an installment due in
23 Case No. _____.

24 YOU MUST BE PRESENT AT THE HEARING.

1 At any time before the date of the cost hearing, you may contact
2 the court clerk and pay the amount due or request in writing or in
3 person prior to the court date, that the hearing be rescheduled for
4 no later than thirty (30) days after the scheduled time.

5 THIS IS NOT AN ARREST WARRANT. However, if you fail to appear
6 for the cost hearing or pay the amount due, the court may issue a
7 WARRANT and ~~may~~ shall refer the case to a court cost compliance
8 liaison which will cause an additional administrative fee of up to
9 thirty-five percent (35%) to be added to the amount owed and may
10 include additional costs imposed by the court.

11 4. Referrals to the court cost compliance program as provided
12 in subsection L of this section shall be made as follows:

- 13 a. courts shall refer a case to the court cost compliance
14 program upon the issuance of a cost arrest warrant,
- 15 b. courts ~~may~~ shall have a cost hearing when ability to
16 pay was determined by subsections C or D of this
17 section. If the defendant does not appear for the
18 cost hearing, the court shall refer a case to the
19 court cost compliance program upon the issuance of a
20 cost cite and release warrant; provided, the defendant
21 is delinquent and has had sufficient notice and
22 opportunity to have a cost hearing, or
- 23 c. courts may refer a case to the court cost compliance
24 program without the issuance of a warrant; ~~provided,~~

~~the defendant is delinquent and has had sufficient
notice and opportunity to have a cost hearing for
individuals with ability to pay that is not determined
pursuant to subsection B, D, or E of this section.~~

5. A municipal court, in lieu of mailing the summons provided for in this subsection, may give the summons to the defendant in person at the time of sentencing or subsequent appearance of a specific date, time, and place, not fewer than thirty (30) days nor more than one hundred twenty (120) days from the date of sentencing to appear for a cost hearing if the court financial obligations remain unpaid.

~~H.~~ F. 1. If a defendant is found by a law enforcement officer to have an outstanding cost cite and release warrant, the law enforcement officer shall issue a Warning/Notice to appear within ten (10) business days of release from detention on the warrant to the court clerk of the court in which the court financial obligations are owed. If the officer has the necessary equipment, the officer shall immediately transmit the Warning/Notice electronically to the court clerk of the court in which the court financial obligations are owed. The law enforcement officer shall not take the defendant into custody on the cite and release warrant. If the law enforcement officer is unable to transmit the Warning/Notice electronically to the court clerk, the officer shall inform the appropriate department staff member within the agency of

1 the law enforcement officer of the Warning/Notice within five (5)
2 days. The department staff member shall then promptly notify the
3 law enforcement agency in the jurisdiction that issued the warrant
4 electronically who shall promptly notify the court clerk. The
5 electronic communication shall be treated as a duplicate original
6 for all purposes in any subsequent hearings before the appropriate
7 court.

8 2. If the defendant reports to the office of the court clerk
9 within the ten (10) business days, the court clerk shall:

- 10 a. inform the court of the Warning/Notice to the
11 defendant and contact,
- 12 b. schedule a cost hearing pursuant to applicable local
13 court rule, and
- 14 c. submit the warrant to the court for recall pending the
15 cost hearing.

16 3. If the defendant fails to report to the office of the court
17 clerk within the ten (10) business days, the court:

- 18 a. may issue a cost arrest warrant for the arrest of the
19 defendant if the ability to pay was determined
20 pursuant to subsections C or D of this section, or
- 21 b. issue a cost arrest warrant for the arrest of the
22 defendant if the ability of the individual to pay was
23 not determined pursuant to subsections B, C, or D of
24 this section.

1 4. Following an arrest on a cost arrest warrant, the defendant
2 must be released after ~~seventy-two (72)~~ twenty-four (24) hours in
3 custody. The defendant may be released prior to ~~seventy-two (72)~~
4 twenty-four (24) hours if:

- 5 a. the custodian is presented with proof of payment in
6 the amount of One Hundred Dollars (\$100.00) to each
7 jurisdiction where the court financial obligations are
8 owed and the new cost hearing date is provided,
- 9 b. the court releases the defendant on the defendant's
10 own recognizance and a new cost hearing date is
11 provided, or
- 12 c. the court conducts a cost or willfulness hearing, as
13 appropriate, pursuant to the provisions of this
14 section and determines the defendant should be
15 released.

16 5. The provisions for issuing a separate summons described in
17 subsection G of this section shall not apply to a municipal court if
18 the municipal court has previously provided actual personal notice
19 to the defendant of an opportunity for a cost hearing. If such
20 notice was given and the defendant fails to appear, the municipal
21 court ~~may~~ shall issue either a cost cite and release warrant or a
22 cost arrest warrant.

23 6. All warrants for failure to appear at a cost hearing or for
24 failure to pay court financial obligations which have been issued

1 prior to the effective date of this act and which remain unserved,
2 shall be treated as cost cite and release warrants and referred to
3 the court cost compliance program unless the ability of the
4 defendant to pay was determined by subsections B, C, or D of this
5 section. All warrant fees assessed for warrants for failure to
6 appear at a cost hearing or for failure to pay court financial
7 obligations issued prior to the effective date of this act shall
8 remain in effect unless waived by the court in accordance with
9 subsections B, C, and D of this section.

10 ~~I.~~ G. Supporting documents in a motion or affidavit for relief
11 from court financial obligation debt or any documents taken into
12 evidence during a cost hearing or willfulness hearing shall not be
13 viewable by the public on a court-controlled website.

14 ~~J.~~ H. 1. After a cost hearing where a defendant is found able
15 to pay a court financial obligation, either in whole or in part, and
16 then becomes delinquent in that payment, a court may conduct a
17 willfulness hearing at any time beginning immediately after a cost
18 hearing has been held and a decision rendered on the court financial
19 obligations. Findings of a defendant's prior ability to pay may be
20 considered as evidence of ability to pay or willfulness at the
21 hearing. The requirements of this paragraph shall not be construed
22 to prohibit the court from holding subsequent cost hearings on the
23 same court financial obligations.

1 2. At a willfulness hearing, the court shall evaluate the
2 following:

- 3 a. whether a cost hearing has been held previously where
4 evidence relating to ability to pay was presented and
5 the court found the defendant was able to pay the
6 court financial obligations, either in whole or in
7 part,
- 8 b. whether there is any new evidence of ability to pay
9 not previously considered or a change in circumstances
10 since the cost hearing,
- 11 c. whether the defendant was afforded sufficient time and
12 opportunity to fulfill the obligation to pay the court
13 financial obligations,
- 14 d. whether the defendant made any efforts to satisfy the
15 court financial obligations, and
- 16 e. whether there are any other relevant facts or
17 circumstances.

18 3. After a finding of willful failure to pay court financial
19 obligations, the court may impose a jail sentence pursuant to
20 Section 101 of Title 28 of the Oklahoma Statutes. A jail sentence
21 may be imposed only under the following circumstances:

- 22 a. the hearing is conducted on the record pursuant to the
23 rules promulgated by the Court of Criminal Appeals,
24 and

1 b. the defendant is represented by counsel or expressly
2 waives his or her right to counsel.

3 4. If a jail sentence is imposed, the court may grant credit
4 for any time already served. At any time after incarceration, the
5 jail sentence may be satisfied upon payment in full of the
6 outstanding balance with credit for any time already served.

7 ~~K. The district court or municipal court, within one hundred~~
8 ~~twenty (120) days from the date upon which the person fails to~~
9 ~~comply with the financial obligation as ordered by the court or~~
10 ~~fails to appear for the offered cost or willfulness hearing, may, if~~
11 ~~the defendant has previously been notified of the possibility of a~~
12 ~~suspension, send notice of nonpayment of any court-ordered financial~~
13 ~~obligation for a moving traffic violation to Service Oklahoma with a~~
14 ~~recommendation of suspension of~~

15 I. No person shall have his or her driving privileges of the
16 ~~defendant until the total amount of any court financial obligation~~
17 ~~has been paid or waived by the court. Upon receipt of payment of~~
18 ~~the total amount of the court financial obligations for the moving~~
19 ~~traffic violation, the court shall send notice thereof to Service~~
20 ~~Oklahoma, if a nonpayment notice was sent as provided for in this~~
21 ~~subsection. Notices sent to Service Oklahoma shall be on forms or~~
22 ~~by a method approved by Service Oklahoma~~ suspended for failure to
23 pay fines, court costs, fees, or assessments.

1 J. 1. If a defendant is referred to the court compliance
2 program pursuant to paragraph 4 of subsection E of this section, the
3 court shall enter a cost judgment pursuant to the provisions of
4 Section 101 of Title 28 of the Oklahoma Statutes.

5 2. A municipal court shall have the ability to enter a cost
6 judgment for cost obligations one hundred twenty (120) days after
7 sending notice of nonpayment of any court-ordered financial
8 obligation.

9 ~~L. K.~~ Every county and district court of this state shall fully
10 utilize and participate in the court cost compliance program. ~~Cases~~
11 ~~shall be referred to the court cost compliance program no more than~~
12 ~~sixty (60) days after the court has ordered the referral pursuant to~~
13 ~~paragraph 4 of subsection G of this section, unless the defendant~~
14 ~~pays the amount owed on the court financial obligation or an~~
15 ~~installment due.~~ When the court refers a case, the updated contact
16 information on file shall be forwarded to a court cost compliance
17 liaison for collection purposes.

18 ~~M. L.~~ ~~The Court of Criminal Appeals shall implement procedures~~
19 ~~and rules for implementation of the requirements of this section.~~
20 ~~Such procedures, rules, and any supplemental forms may be made~~
21 ~~available by the Administrative Office of the Courts shall develop~~
22 standardized forms, procedural rules, and guidelines to aid courts
23 in conducting ability-to-pay hearings, documenting findings,
24 implementing reductions or waivers, and tracking compliance.

1 M. The provisions of this section shall apply to all sentences
2 imposed on or after November 1, 2026.

3 SECTION 2. AMENDATORY 28 O.S. 2021, Section 101, as
4 amended by Section 4, Chapter 247, O.S.L. 2023 (28 O.S. Supp. 2025,
5 Section 101), is amended to read as follows:

6 Section 101. A. The fees herein provided for the clerk of the
7 district court and the sheriff, as provided in this section, and all
8 costs in the prosecution of all criminal actions shall, in case of
9 conviction of the defendant, be adjudged a part of the penalty of
10 the offense of which the defendant may be convicted, whether the
11 punishment for such offense be either imprisonment, or fine, or
12 both, and fixed either by the verdict of the jury, or judgment of
13 the court, trying the case, ~~and if the defendant shall refuse to pay~~
14 ~~the court financial obligations, the payment of such fees and costs,~~
15 ~~in addition to the payment of the fine assessed, shall be enforced~~
16 ~~by imprisonment until the same shall be satisfied at a rate of up to~~
17 ~~One Hundred Dollars (\$100.00) per day of such fees and costs, or~~
18 ~~fine, or both, or shall be satisfied at a rate of up to Two Hundred~~
19 ~~Dollars (\$200.00) per day of such fees and costs, or fine, or both,~~
20 ~~should the defendant perform useful labor. If, at the time of~~
21 sentencing or anytime thereafter, the defendant is ~~without means to~~
22 pay the fine referred to the court cost compliance program pursuant
23 to paragraph 4 of subsection E of Section 983 of Title 22 of the
24 Oklahoma Statutes, then his or her fines, fees ~~or~~, and court costs,

1 ~~the total amount owed may~~ shall be entered as a judgment and
2 thereupon the same remedies shall be available for the enforcement
3 of the judgment as are available to any other judgment creditor.

4 ~~The~~ B. As used in this section, the term "all costs in the
5 prosecution of all criminal actions", ~~as used in this section,~~ shall
6 include all court financial obligations as defined in Section 983 of
7 Title 22 of the Oklahoma Statutes.

8 SECTION 3. This act shall become effective November 1, 2026.

9 Passed the House of Representatives the 26th day of March, 2026.

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Presiding Officer of the House
of Representatives

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Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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